Mr. Parvez Mustaq Shaikh vs The State Of Delhi & Anr on 16 August, 2024

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

\+ CRL.M.C. 3021/2024

MR. PARVEZ MUSTAQ SHAIKH

Through:

versus

THE STATE OF DELHI & ANR. .....Respo

Through: Mr. Amit Ahlawat, APP for S
SI Ravindra PS South Rohini

CORAM:

HON'BLE MR. JUSTICE ANISH DAYAL

ORDER

% 16.08.2024

1. This petition is filed seeking quashing of FIR No.219/2016 under Sections 420/468/471/120B IPC PS South Rohini. Petitioner is an Indian citizen, and as per his counsel, has been wrongly been accused and arrayed as accused no.8, despite the fact that he does not know accused nos. 1 to 7 at all.

2. In this case of an online fraud complainant has allegedly been cheated of monies, out of which of Rs.5,50,000/- has been received by accused no.7 Yahya Khan.

3. Accused no.8 was arrested (though on bail) for having received Rs.60,000/- from Yahya Khan, which is disputed by counsel for petitioner.

4. APP for State has handed up status report and states that the matter is fixed for 24th August 2024 before the Trial Court, but charges have not been framed as yet. Petitioner will therefore have liberty to argue at the stage of charge before the Trial Court.

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5. Counsel for petitioner seeks leave to withdraw this petition seeking such liberty.

6. In these circumstances, petition is dismissed as withdrawn with pending application, if any. Leave and liberty granted.

7. Order be uploaded on the website of this Court.

ANISH DAYAL, J AUGUST 16, 2024/sm This is a digitally signed order.

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